

August 4, 2026

26-142B

Council Response to Paper 26-142

Offered by President Bears

Motion to Approve: Councilor Tseng

Approved Unanimously

Whereas, the Medford City Council unanimously approved Resolution 26-043 on February 24, 2026 requesting a comprehensive litigation report from the City Administration regarding the significant increase in legal claims against the City of Medford since January 2020 and the financial cost of the City Administration's decisions regarding litigation strategy and employee relations to the city and its residents; and,

Whereas, the Medford City Council unanimously approved Resolution 26-077 on April 28, 2026 to file a Public Records Request pursuant to state law due to the City Administration's lack of response to the prior request; and,

Whereas, the Medford City Council took numerous votes and councilors provided clarity and guidance to the City Administration at dozens of public City Council meetings since February 2026 regarding the information requested in the above resolutions; and,

Whereas, the Medford City Council has only received partial and significantly delayed responses from the City Administration, including information never requested by the Council; and,

Whereas, the Medford City Council was forced to reduce the FY27 Law Department budget due to lack of information about past legal expenses and planned FY27 legal expenses in order to exercise basic oversight and transparency regarding the FY27 City Budget; and,

Whereas, the City Administration has made repeated statements that they are not capable of meeting these requests even after repeated clarifications by the Council; and,

Whereas, the Medford City Council received a document today, August 4, 2026, summarizing KP Law expenditures since January 2020 with a total sum of \$2.4 million; and,

Whereas, the Chief of Staff informed the City Council by email that she is not able to attend tonight's meeting due to a prior commitment and requested that the Council refer any additional questions to the Mayor and Chief of Staff; now, therefore:

Be it Resolved by the Medford City Council that we request the following from the City Administration:

1. A written response to Resolution 26-043 with the status of each requested item in the Comprehensive Litigation Report and Quarterly Litigation Status Report, including an explanation of what efforts have been made to respond to each request and why the City Administration cannot provide the requested information, if necessary. This explanation may also include any efforts made to respond to the Public Records Request authorized by the Council in Resolution 26-077.
2. A written response to Resolution 26-043's request for an independent review of the City's litigation costs, practices, and risk management procedures.
3. A categorization of the August 4, 2026 list of KP Law expenditures into the following categories:
 - i. Collective bargaining negotiation expenses
 - ii. Employee litigation, arbitration, grievance, or other settlement-related expenses
 - iii. Legal review of ordinances or board and commission proceedings
 - iv. Non-employee claims and litigation (e.g. vehicle or sewer claims)
 - v. Provision of legal guidance to city staff regarding administrative actions
 - vi. Other legal work
4. A similar report and categorization of expenditures for any other outside legal services provided by firms other than KP Law since 2020.
5. A financial summary of all settlements or judgments against the city for claims over \$10,000 since 2020, including the amount paid by the city for each claim and the source of funds used to make payment.
6. A list and total estimated cost of all budgeted legal expenses for the FY27 city budget in department budgets other than the Law Department.
7. An update on the hiring of a City Solicitor and when the job will be posted.

Be it Further Resolved that the Medford City Council hopes that this further written clarification of its numerous and repeated requests for information since February 2026 will provide the City Administration with appropriate guidance to meet these requests and provide a transparent and full accounting of the city's legal expenses since 2020 to the residents of Medford.

Be it Further Resolved that this resolution be submitted to the City Administration immediately and the text be placed on the September 15, 2026 City Council Regular Meeting Agenda as Paper 26-142B along with any written responses received from the City Administration by September 10.